

26NNCV00024 26NNCV00024

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Case Number: 26NNCV00024 Hearing Date: September 18, 2026 Dept: A

LOS ANGELES SUPERIOR COURT

NORTH CENTRAL DISTRICT - BURBANK

DEPARTMENT A

TENTATIVE RULING

SEPTEMBER 18, 2026

DEMURRER

Los

Angeles Superior Court Case # 26NNCV00024

MP: Defendants

Jay Davis and Cedar Restaurant Group, LLC

RP: Plaintiff

Comedy Chateau, Inc.

NOTICE:

The Court is not requesting oral argument on this matter. Unless the Court directs argument in the Tentative Ruling, no argument is required. The tentative ruling will become the ruling of the court if no argument is received.

ALLEGATIONS:

Comedy Chateau, Inc. ("Plaintiff") alleges that on November 12, 2025, Plaintiff and Defendant Jay Davis ("Davis") entered into an oral agreement whereby, in exchange for Plaintiff's advance payment of \$3,000, Davis agreed to act as an exclusive booker and to serve as part of Plaintiff's booking team for weekend comedy shows at The Comedy Chateau from November 12, 2025 to December 31, 2025.

(FAC, ¶¶10-12.) Shortly after entering the agreement, Davis informed Plaintiff he suffered a personal injury and was unable to perform his obligations for a period of time, but failed to provide any reliable alternative system, to coordinate with Plaintiff's staff, and to ensure that bookings were properly handled. (Id., ¶¶14-15.) Davis refused to use Plaintiff's booking system pursuant to Plaintiff's agreed procedures and failed to coordinate with Plaintiff's booking team despite express agreement to do so, such that he concealed booking activity from Plaintiff and deprived Plaintiff of the ability to monitor, verify, and manage scheduled performances. (Id., ¶¶16-18.)

On December 12, 2025, Davis failed to book any performers for a scheduled show, resulting in a failed event and financial loss to Plaintiff. (Id., ¶20.) On December 13, 2025, a performer appeared and confirmed her availability for December 20, 2025. (Id., ¶21.) On December 15, 2025, Davis informed Plaintiff he would no longer perform under the agreement, to which Plaintiff notified Davis of his remaining contractual obligations until December 31, 2025. (Id., ¶¶22-23.) Shortly thereafter, Plaintiff learned that Davis arranged and promoted a December 20, 2025 show at Yamashiro, which is owned, operated, managed, and/or controlled by Defendants Yamashiro, LLC and Samaka LLC. (Id., ¶¶3, 6, 24.) Defendant Yamashiro, Inc. is alleged to be connected with the Yamashiro venue, while Defendant Cedar Restaurant Group, LLC, is allegedly associated with the management, operation, and/or control of the Yamashiro venue and its related business activities. (Id., ¶¶4-5.) On December 17, 2025, Plaintiff issued a cease-and-desist letter to the "Yamashiro parties" (undefined) notifying them of Plaintiff's exclusive contract with Davis and that a December 20, 2025 performance had already been confirmed for Plaintiff's venue. (Id., ¶25.) Plaintiff is informed and believes that "Yamashiro parties" transmitted this notice to Davis. (Id., ¶26.) On December 20, 2025, Plaintiff prepared its venue for the confirmed performance, marketed

the event, and received patrons who attended expecting the scheduled performer, but no performer appeared and when contacted, she stated that Davis had told her the performance had been moved to Yamashiro instead of Plaintiff's venue. (Id., ¶¶27-31.)

The Revised First Amended Complaint ("FAC"), filed June 9, 2026, alleges: (1) Breach of Contract against Davis; (2) Promissory Fraud against Davis; (3) Intentional Interference with Contractual Relations against all Defendants; (4) Interference with Prospective Economic Relations against all Defendants; and (5) Unjust Enrichment/Restitution against all Defendants.

MOTION ON CALENDAR:

On August 12, 2026, Davis and Cedar filed a Demurrer to the Revised FAC. On September 4, 2026, Plaintiff filed an opposition. On September 11, 2026, Davis and Cedar filed a reply.

LEGAL STANDARD:

The grounds for a demurrer must appear on the face of the pleading or from judicially noticeable matters. (C.C.P. § 430.30(a); *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318.) A demurrer for sufficiency tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.) The only issue involved in a demurrer hearing is whether the complaint states a cause of action. (Id.)

A demurrer assumes the truth of all factual, material allegations properly pled in the challenged pleading. (*Blank, supra*, 39 Cal. 3d at p. 318.) No matter how unlikely or improbable, the plaintiff's allegations must be accepted as true for the purpose of ruling on the demurrer. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604.) But this does not include contentions; deductions; conclusions of fact or law alleged in the complaint; facts impossible in law; or allegations contrary to facts of which a court may take judicial notice. (*Blank, supra*, 39 Cal. 3d at 318.)

Pursuant to

C.C.P. §§ 430.10(e) and (f), the party against whom a complaint has been filed may demur to the pleading on the grounds that the pleading does not state facts sufficient to constitute a cause of action, or that the pleading is uncertain, ambiguous and/or unintelligible. It is an abuse of discretion to sustain a demurrer without leave to amend if there is a reasonable probability that the defect can be cured by amendment. (*Schifando v. City of Los Angeles* (2003) 31 Cal. 4th 1074, 1082.)

MEET AND

CONFER:

C.C.P. §§

430.41(a) and 435.5(a) require that the moving party meet and confer with the party who filed the pleading that is subject to the demurrer and/or motion to strike. Upon review, the Court finds the meet and confer requirements were met. (See Dutton Decl., ¶¶2-5.)

ANALYSIS:

Davis

and Cedar demur to the FAC's Second to Fifth Causes of Action on the grounds that they fail to state sufficient facts and are uncertain.

A.

Second Cause of Action for Promissory Fraud – Sustained with
Leave to Amend

Promissory fraud is a subspecies of a
fraud and deceit claim. (*Lazar v. Superior Court* (1996) 12
Cal.4th 631, 638; Civ. Code, § 1710(4).)

“A

promise to do something necessarily implies the intention to perform; hence, where a promise is made without such intention, there is an implied misrepresentation of fact that may be actionable fraud.” (*Lazar, supra*, 12 Cal.4th at 638.)

An action for promissory fraud may lie where a defendant fraudulently induces the plaintiff to enter into a contract.

(*Id.*) “[T]o

sufficiently allege[] defendant made a misrepresentation, the complaint must allege (1) the defendant made a representation of intent to perform some future

action, i.e., the defendant made a promise, and (2) the defendant did not really have that intent at the time that the promise was made, i.e., the promise was false.” (Beckwith v. Dahl (2012)

205 Cal.App.4th 1039, 1060.) “Each element must be alleged with particularity.” (Id.)

To plead the first element that the defendant made a promise, the complaint must state facts showing how, when, where, to whom, and by what means the representations were tendered. (Id.)

The second element of the falsity of the promise is sufficiently pled with a general allegation the promise was made without an intention of performance. (Id.)

In the Second Cause of Action, Plaintiff alleges that Davis represented he would perform booking services, coordinate with Plaintiff, and utilize Plaintiff’s systems, but the representations were false and made without intent to perform at the time they were made. (FAC, ¶¶47-48.) Plaintiff contends it relied on the representations and paid Davis and that Davis’s subsequent conduct demonstrates fraudulent intent. (Id.,

¶¶49-50.) Plaintiff also alleges that on

December 20, 2025, Davis knowingly and falsely misrepresented to the performer that the show had been moved, intending the performer’s reliance, such that Plaintiff was damaged. (Id.,

¶¶51-53.)

The allegations do not rise to the level of specificity required for a fraud claim. Plaintiff generally

alleges that Davis represented he would perform booking services orally on November 12, 2025, but the allegations are not specific as to where, to whom (as Plaintiff is a corporation), and by what means the representations were tendered. Moreover, Plaintiff has not alleged specific facts regarding Davis’s representations regarding coordinating with Plaintiff and utilizing Plaintiff’s systems.

Next, Plaintiff alleges that Davis made misrepresentations to the performer, to which the performer relied, thereby damaging Plaintiff. However, Plaintiff has not alleged facts that Davis made misrepresentations to Plaintiff regarding the December 20, 2025 performance. Rather, the Complaint

alleges that the performer (not Davis) confirmed on December 13, 2025 that she would be available on December 20, 2025. (FAC, ¶21.)

Thus, Plaintiff has not alleged a valid basis for Fraud against Davis

for representations (if any) he made to Plaintiff regarding the December 20, 2025 performance.

The demurrer to the Second Cause of Action is sustained with leave to amend.

B.

Third Cause of Action for Intentional Interference with Contractual Relations – Sustained with Leave to Amend

“The elements

which a plaintiff must plead to state the cause of action for intentional interference with contractual relations are (1) a valid contract between plaintiff and a third party; (2) defendant's knowledge of this contract; (3) defendant's intentional acts designed to induce a breach or disruption of the contractual relationship; (4) actual breach or disruption of the contractual relationship; and (5) resulting damage.”

(Pac Gas & Electric Co. v.

Bear Stearns & Co. (1990) 50 Cal.3d 1118, 1126.)

In the Third

Cause of Action, Plaintiff alleges that it had a valid contract with the performer, Defendants had actual knowledge of that contract through the December 17, 2025 cease-and-desist letter, and they intentionally interfered by inducing the performer not to perform at Plaintiff's venue through false representations. (FAC, ¶¶56-58.) Plaintiff alleges the performer relied, such that the contract was disrupted. (Id., ¶59.) Plaintiff contends Defendants' conduct was independently wrongful, including fraud and misrepresentation. (Id., ¶60.)

Plaintiff

alleges in a conclusory manner that it had a valid contract with the performer, but no further details are provided regarding this alleged contract. (See FAC, ¶56.) At most, Plaintiff alleges that on December 13, 2025, a performer appeared at Plaintiff's venue and confirmed her availability for a subsequent performance scheduled for December 20, 2025. (Id., ¶21.) However, these two allegations together do not rise to the level of establishing a valid contract between Plaintiff and the performer.

Next, Plaintiff

alleges that all Defendants were on notice due to the December 17, 2025 cease-and-desist letter, but the allegations only mention that Plaintiff sent the letter to the Yamashiro parties and that this notice was transmitted to Davis, such that “all Defendants” had actual notice. (FAC, ¶¶25-26.) Davis and Cedar argue there are no allegations regarding Cedar’s knowledge.

Plaintiff alleges that Cedar managed, operated, and/or controlled the Yamashiro venue. (Id., ¶5.) However, it is unclear if Cedar was included in Plaintiff’s undefined “Yamashiro parties” term. The FAC does not otherwise allege that Cedar had actual notice or whether it engaged in intentional acts of interference with the alleged contract.

The demurrer to
the Third Cause of Action is sustained with leave to amend.

C.

Fourth Cause of Action for Interference with Prospective
Economic Relations – Sustained with Leave to Amend

The elements of

the tort of intentional interference with prospective economic advantage are: “(1) an economic relationship between the plaintiff and some third party, with the probability of future economic benefit to the plaintiff; (2) the defendant’s knowledge of the relationship; (3) intentional acts on the part of the defendant designed to disrupt the relationship; (4) actual disruption of the relationship; and (5) economic harm to the plaintiff proximately caused by the acts of the defendant.” (Korea Supply Co. v. Lockheed Martin Corp. (2003)

29 Cal.4th 1134, 1153.) “In addition, the plaintiff must allege that the defendant’s conduct was wrongful by some measure beyond the fact of the interference itself. [Citation.] In this context, an act is independently wrongful if it is unlawful, that is, if it is proscribed by some constitutional, statutory, regulatory, common law, or other determinable legal standard. [Citation.] The conduct must be independently actionable. The act of interference with prospective economic advantage is not tortious in and of itself, but requires pleading that a defendant has engaged in an act that was independently wrongful in order to distinguish lawful competitive behavior from tortious interference.” (Stevenson Real Estate Services, Inc. v. CB Richard Ellis Real Estate Services, Inc. (2006) 138

Cal.App.4th 1215, 1220 [internal quotation marks and citations omitted].)

In the Fourth Cause of Action, Plaintiff allege it had ongoing and prospective economic relationships with performers, customers, and patrons; Defendants knew of the relationships; Defendants engaged in wrongful conduct, including fraud, concealment, and diversion to disrupt the relationships; and Defendants knew harm was substantially certain to occur. (FAC, ¶¶64-67.)

Plaintiff's allegations are conclusory as Plaintiff has not identified the third parties or what future economic benefit they would have provided to Plaintiff. Furthermore, Plaintiff has not alleged an independently wrongful act by Davis and/or Cedar. To the extent Plaintiff relies on fraudulent conduct by Davis, that claim is not sufficiently alleged as discussed above. With respect to Cedar, Plaintiff has not alleged what independently wrongful act Cedar engaged in to disrupt the economic relationship.

The demurrer to the Third Cause of Action is sustained with leave to amend.

D.
Fifth Cause of Action for Unjust Enrichment/Restitution – Sustained with Leave to Amend

Under California law, unjust enrichment is not a cause of action. (Melchior v. New Line Productions, Inc. (2003) 106 Cal. App. 4th 779, 794.) Instead, it is the failure to make restitution under circumstances where it is equitable to do so. (Id.) Unjust enrichment is a general principle, underlying various legal doctrines and remedies, rather than a remedy itself. (Id.) It is synonymous with restitution. (Id.) This is the basis for the general rule in California, which finds that unjust enrichment is not a cause of action, but a claim for restitution. (Hill v. Roll Int'l Corp. (2011) 195 Cal. App. 4th 1295, 1307.) "[R]estitution is a remedy and not a freestanding cause of action." (Reid v. City of San Diego (2018) 24 Cal.App.5th 343, 362.)

Therefore, the demurrer to the Fifth Cause of Action is sustained as there is no cause of action for Unjust Enrichment or Restitution. In opposition, Plaintiff seeks leave to amend to allege a different quasi-contract type claim in the alternative if the benefits sought lie outside the booking contract. The Court will allow leave to amend.

RULING:

In the event a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court's records.

ORDER

Defendants Jay Davis and Cedar Restaurant Group, LLC's Demurrer came on regularly for hearing on September 18, 2026, with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

THE DEMURRER TO THE SECOND TO FIFTH CAUSES OF ACTION IN THE REVISED FIRST AMENDED COMPLAINT IS SUSTAINED WITH 30 DAYS' LEAVE TO AMEND.

THE CASE MANAGEMENT CONFERENCE IS ADVANCED AND CONTINUED TO DECEMBER 16, 2026 AT 9:00 AM.

DEFENDANT JAY DAVIS
TO GIVE NOTICE.

IT IS SO ORDERED.